

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 20, 2022. The complaint was directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, as there were indications of a possible breach of the provisions of data protection regulations.

In said document, the complainant stated that the respondent installed surveillance cameras on their property, adjacent to their home, which, due to their location and orientation, are capable of capturing images of their home, as well as of the public road, without authorization for doing so and without being properly marked with the required informative signs of the monitored area.

In order to substantiate these facts, the complainant submitted images of the location and orientation of the aforementioned cameras along with their written complaint.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 2, 2023, as evidenced by the acknowledgment of receipt in the file.

On February 22, 2023, this Agency received a written response from the respondent, in which it was stated that, indeed, they have five surveillance cameras at their home, one of which is fictitious. It specifies that these cameras record continuously during the day and night, with the images being deleted as the capacity of their respective memory cards fills up. Furthermore, it highlights that two of the mentioned cameras are focused on a house that is next to theirs, justifying this fact by indicating that this house also belongs to them.

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Along with the aforementioned response document, various photographs of the different devices are attached, as well as the field of view of the non-fictitious cameras. A photograph of the sign installed at the entrance of the property is also attached, which merely indicates the existence of a video surveillance area.

However, the response document did not provide all the requested information. No responsible declaration was submitted regarding one of the cameras in the system that is supposedly fictitious, nor was the retention period of the images resulting from the recordings specified. Furthermore, from the analysis of the images from the field of view of the cameras that were provided, it is evident that part of the public road was captured, showing several parked vehicles, as well as another property different from the one where the cameras are installed, for which no document was provided to prove ownership. Finally, the informative sign did not include all the information required by Article 13 of the GDPR and Article 22.4 of the LOPDGDD.

THIRD: On March 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On July 5, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringements of Articles 5.1.c) of the GDPR and 13 of the

GDPR, both classified under Article 83.5 of the GDPR.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement of allegations that was received on July 16, 2023, in which, in summary, it stated that:

- Regarding the video surveillance sign, it claimed that not all the photographs it had were attached, providing new images showing the sign using the model included in the video surveillance guide published by the current authority. In the section identifying the responsible party for the mentioned sign, "the owner" is listed as responsible.
- Regarding the second property being captured by the video surveillance cameras, which it claims is its property, it states that the reason for this recording is that it has been uninhabited for more than 10 years. To this end, tax receipts for a property located at ***ADDRESS.1 in the same locality are attached. After checking the mentioned receipts, the present instructor concludes that it holds 50% ownership of that property.
- In relation to the assertion that one of the cameras was fictitious, it attaches the Responsible Declaration through which it states that the described camera is entirely fictitious, thus it does not capture or store any images.
- Regarding the retention period of the recorded images, it reiterates that the cameras record continuously, with the images being deleted...

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images as their respective memory cards fill up, which occurs within a maximum period of one month from their capture.

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Finally, it attaches new photographs of the field of view of the cameras, stating that they do not capture images beyond their properties.

SIXTH: After the present instructor verified all the documentation provided during the transfer and along with the allegations, certain doubts arise regarding which areas captured by the cameras belong or do not belong to the claimed party, given that there are images showing several parked vehicles and another of these images seems to coincide with the photograph taken by the claiming party from their property submitted along with their claim.

Based on these circumstances, a period for the practice of evidence was opened in order for the claimed party to provide the following information and documentation for each of the four operational cameras installed in their home:

- Photograph of the location of each camera.
- Capture of its field of view.
- Brief description of the view of each camera, expressly indicating whether it captures images of their property, of someone else's property, or of public roads.

Furthermore, considering that the property tax receipt provided lists the claimed party as the owner of 50% of the property located at ***ADDRESS.1, they are required to identify the other owner(s) of said property, indicating whether there is consent from the mentioned owners for the recording of that property and, in that case, to provide the document that certifies its granting.

SEVENTH: On September 25, 2023, the response from the claimed party to the information and documentation requested by this entity was received, through which new photographs of the location of the cameras, as well as their field of view, were provided. Regarding the description of the view and the identification of the other owners of the property that had, in principle, been captured, nothing was mentioned in this regard.

EIGHTH: On December 27, 2023, a resolution proposal was made through which it was proposed to the Director of the Spanish Agency for Data Protection to sanction the claimed party:

- For the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of said regulation,

an administrative fine of 300.00 euros.

- For the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 300.00 euros.

In this resolution proposal, the claimed party was granted a period of ten working days to indicate any allegations they deemed appropriate in their defense and to present the documents and information they considered pertinent, in accordance with Article 89.2 of the LPACAP.

The claimed party has not submitted allegations or documents against the aforementioned resolution proposal.

NINTH: From the actions taken in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The installation of a video surveillance system at the home of the claimed party has been established, consisting of five cameras located in different parts of the aforementioned property, one of which is fictitious. This is evident from the photographs provided by both parties during the instruction of the present procedure, as well as from the invoices provided by the claimed party related to the acquisition of the aforementioned video surveillance system.

SECOND: It has been confirmed that the cameras installed at the home of the claimed party capture, in addition to part of this home, areas of the public road where identifiable parked vehicles appear, as well as other properties whose owners have not been identified. Among these properties is the adjoining property located at ***ADDRESS.1, of which the claimed party owns 50 percent. This fact is evidenced by the camera captures provided by the claimed party, as well as the tax receipts provided by the claimed party in relation to the adjoining property.

THIRD: A discrepancy has been verified between the images provided by the claimed party in the transfer and in the allegations, compared to the images subsequently presented by them during the evidence practice period. Although the location photographs coincide on both occasions, the field of view is different in the more recent images, showing different captures. In these latest images, none are observed that capture the exterior or a property different from that of the claimed party, unlike the images presented previously.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Likewise, Article 63.2 of the LOPDGDD establishes that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the entity being complained against during the initiation agreement, the following is reiterated:

Regarding the images provided throughout this procedure, as indicated in the established facts, an excess in the presentation of images by the entity being complained against has been noted, as there is a clear discrepancy between the images presented during the preliminary transfer and in the allegations, and those provided later during the practice of the evidentiary period. The purpose of

opening the evidentiary period was precisely to determine which specific images were captured by the various cameras on the property of the complainant. However, the entity being complained against only provided new non-coinciding images, without providing a description of the images previously presented, despite having been expressly requested in the notification. This excess has been noted and corrected subsequently in the procedure.

Regarding the allegation that one of the properties captured by the cameras is owned by them, from the tax receipts they provided to substantiate this fact, it is evident that they only own 50 percent of it, without having identified the other co-owners, as well as, where applicable, their consent to proceed with such capture, despite having also been requested in the agreement of the evidentiary period.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system is in accordance with the provisions established in the GDPR.

IV

Obligations regarding video surveillance

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The processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, assess them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, whenever there is a risk to the rights and freedoms of natural persons, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal

data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "regulations"),
 - the Guide on the use of video cameras for security and other purposes,
 - the Guide for compliance with the duty to inform (both available in the section "Guides and tools").
- It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the processing of personal data they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Legal Regime

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the duty to inform provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it is an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This duty of information will be understood as fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. If the monitored space has several entrances, this distinctive sign of a monitored area must be available at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

Furthermore, the processing of personal data is subject to the other principles of processing contained in Article 5.1 of the GDPR. Among them is, in section c), the principle of data minimization according to which personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on them.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, the cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum necessary portion to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

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The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they infringe upon the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

VI

Violation of Article 5.1 c) of the GDPR

According to Article 77 of the Law on Common Administrative Procedure of Public Administrations, the relevant facts for the decision of a procedure may be proven by any admissible means of evidence in law, the assessment of which will be carried out in accordance with the criteria established in Law 1/2000, of January 7, on Civil Procedure.

In this regard, Article 382 of the aforementioned Civil Procedure Law establishes that reproductions of images and sounds captured by filming, recording instruments, and similar means will be assessed according to the rules of sound criticism.

Following these premises, from the images provided by both the claimant and the defendant, the present instructor deduces an excessive capture that violates the data minimization principle established in the aforementioned Article 5.1.

This excessive capture is evident in several images provided by the claimant, among which part of the public road is visible where parked vehicles appear. Similarly, the defendant has confirmed the existence of a recording on the adjacent property, which they claim is their own, although tax receipts indicate that they only own 50% of it, without having indicated the other owners and, in such a case, their consent to carry out such recordings.

The images subsequently provided by the defendant during the evidentiary period do not invalidate the existence of such facts, since despite the fact that these new images do not show captures of the exterior or other properties, the present instructor cannot ignore that in the previously submitted images during the transfer and hearing process, there is indeed evidence of excessive capture, which

entails a violation of the data minimization principle required by the GDPR.

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On the other hand, it must be taken into account that the fact of having corrected the irregularity during the course of this procedure does not affect the infringement already committed previously, without prejudice to its possible impact on the measures proposed by the present instructor.

VII

Classification and Qualification of Article 5.1 c) of the GDPR

The violation of the principle established in Article 5.1.c) of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, according to which:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

VIII

Sanction

The imposed fine must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is necessary to adjust the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

For all these reasons, it is considered that the corresponding sanctions in this case are as follows:

- For the infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 300.00 € (THREE HUNDRED EUROS).

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, the following sanctions:

- For the infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of said regulation, an administrative fine of 300.00 € (THREE HUNDRED EUROS).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired

without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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